

Smt. Leelawati Sharma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 September 2014 · Criminal Misc. Writ Petition No. 15724 of 2014 · s.135 FIR not quashed; CrPC 41-A if arrest; compounding under Code 2005

HEADNOTE

A criminal writ to quash an FIR under Section 135 of the Electricity Act, 2003 was refused because the FIR disclosed a cognizable offence. If arrest is to be made in an offence not entailing sentence exceeding seven years, police must follow CrPC s.41(1)(b) read with s.41-A. If the offence is compoundable, the remedy lies under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Leelawati Sharma and another filed a criminal writ in the Allahabad High Court seeking to quash FIR dated 26 August 2014, Case Crime No. 240 of 2014, registered under Section 135 of the Electricity Act, 2003 at Police Station Faizganj Baheta, District Budaun. Arrest had not been effectuated. They contended that the alleged offence could not attract a sentence exceeding seven years, so police should not arrest them mechanically, and that the offence was compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s135-fir-quash-arrest-and-compounding

HOLDING

An FIR under s.135 that discloses a cognizable offence will not be quashed. Where arrest is still only apprehended and the offence will not entail sentence of more than seven years, police must comply with CrPC s.41(1)(b) read with s.41-A. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy Quash refused because the s.135 FIR disclosed a cognizable offence; arrest, if made, confined to CrPC 41(1)(b)/41-A; compounding left to the Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135 OFFENCE IS IN FACT COMPOUNDABLE UNDER THE SUPPLY CODE, 2005

Court only said that if the offence is compoundable, the petitioners may seek that remedy under the Code. ¶ 1